

Lawyer Brief — "Fly GACA" Name and Trade Mark Opinion

SECTION 02-legal TYPE brief STATUS **active** OWNER Founder UPDATED 2026-06-14

Document: [lawyer-brief-name-opinion-2026-06-14.md](#) **Version:** 1.0 — 2026-06-14 **Status:** Brief for qualified Saudi IP / trade mark counsel — NOT legal advice. **Prepared by:** Adel Yahya A. Madkhali, Founder, Fly GACA — with AI drafting assistance **Relationship to existing brief:** This document supplements and supersedes the naming section of the earlier [lawyer-brief.md](#) (02-legal/lawyer-brief.md) and the analysis in [brief-defensible-naming.md](#) (02-legal/brief-defensible-naming.md), both dated May 2026. All three documents should be read together. **Contact:** i@flygaca.com | legal@flygaca.com

This is a brief prepared for a Saudi-qualified trade mark and IP lawyer. It is NOT legal advice and does NOT represent a legal opinion. The analysis in the "Our Understanding" sections below is desk research only — it may be incorrect, and we ask counsel to correct it. We need a written opinion to unblock entity formation, bank account opening, and launch.

1. Background and Urgency

The name "Fly GACA" sits on the critical path for the entire business. Entity formation, domain registration (including the `.sa` domain), bank account opening, and final branding all depend on a locked, legally defensible name. A rebrand discovered after launch would be expensive and damaging. We want counsel's opinion before we commit.

The name "GACA" is the well-known designation of the General Authority of Civil Aviation (الهيئة العامة للطيران المدني), a Saudi government authority. Our use of this name raises two distinct concerns:

- 1. Passing-off / unfair competition:** Could use of "Fly GACA" create a false impression that our platform is connected to, authorised by, or endorsed by GACA?
- 2. Trade mark registrability:** Can we register "Fly GACA" (or any mark incorporating "GACA") as a trade mark at the Saudi Authority for Intellectual Property (SAIP)?

We have done desk research on both questions. The conclusions of that research are set out in the earlier documents. We need a professional legal opinion.

2. The Name in Context

2.1 What the Platform Is

Fly GACA is an independent, private educational reference platform. Every page of the platform displays the following notice (or equivalent):

"Fly GACA is an independent educational platform. It is not affiliated with, endorsed by, or operated by the General Authority of Civil Aviation (GACA) or the Government of the Kingdom of Saudi Arabia."

The disclaimer appears:

- In the site header on every page
- As a dedicated Disclaimer page (flygaca.com/disclaimer)
- In the Terms of Use
- In all marketing materials

2.2 Why We Chose the Name

The name "Fly GACA" was chosen because:

- "GACA" identifies the regulatory authority whose regulations the platform helps students study
- "Fly" is a natural descriptor for the aviation study context
- The combination is memorable and clearly signals the subject matter to our target audience (Saudi pilot candidates)
- The domain flygaca.com was available and secured

2.3 The "Captain Adel" Brand

In parallel with "Fly GACA", we have also built the sub-brand "Captain Adel" for our AI study assistant. The domain captadel.com is secured. "Captain Adel" contains no reference to a government authority and is likely to be registrable as a trade mark. We mention this because, if counsel concludes that "Fly GACA" is not usable or not registrable, "Captain Adel" is available as an alternative primary brand.

3. Our Desk Research — Summary

(Counsel should correct any errors in this section.)

3.1 SAIP Trade Mark Law

Under the Saudi Trade Mark Regulations (Royal Decree M/41 as amended), trade marks may be refused if they:

- Consist of names specific to the Kingdom of Saudi Arabia, its official symbols, or marks that could imply government endorsement
- Include the names of entities or authorities without their consent
- Are likely to mislead the public as to the source, quality, or geographical origin of goods or services

Our desk research suggests that "GACA" alone, or a mark comprising "GACA" as a prominent element, is likely to face refusal at SAIP as being descriptive of a government authority or misleading as to endorsement. We do not know whether the addition of "Fly" is sufficient to change this analysis.

3.2 Passing-Off / Unfair Competition

KSA law (including provisions under the Trade Mark Regulations and possibly the E-Commerce Law / Consumer Protection Law) may provide GACA with a cause of action if a commercial entity uses a name that creates a false impression of connection with GACA. Our disclaimer is a mitigating factor but may not be sufficient if the overall impression of the name is confusing.

We are also aware that a competitor (or a hostile actor) could draw GACA's attention to our name as a lever against us. We want counsel's view on this practical risk.

3.3 [brief-defensible-naming.md](#)

Our analysis in the earlier naming brief (02-legal/brief-defensible-naming.md) identified three paths:

- **Path A:** Keep "Fly GACA" and mitigate with disclaimers
- **Path B:** Demote "Fly GACA" to a descriptive tag; register a different primary mark
- **Path C:** Rebrand the primary name entirely to something without "GACA" in it

We have not chosen between these paths. We are asking counsel to tell us which path is legally defensible and what the realistic risk level is for each.

4. Questions for Counsel

Question 1: Passing-off / unlawful use of "GACA" in a trade name

(a) Does the use of "GACA" as an element of the trade name "Fly GACA" by a private commercial entity constitute passing-off, unfair competition, or any other actionable wrong under KSA law — given the prominent disclaimer described in Section 2.1?

(b) Is GACA itself likely to have a valid legal cause of action against Fly GACA on the basis of the name? What relief could GACA seek (injunction, damages, regulatory action)?

(c) What is the practical risk that a competitor or third party could trigger enforcement action against Fly GACA based on the name?

(d) Does the disclaimer meaningfully reduce the legal risk, or are there circumstances in which a disclaimer is insufficient?

Question 2: Trade mark registrability at SAIP

(a) Can the mark "FLY GACA" (word mark) be registered at SAIP in Class 41 (education and training services) and Class 42 (software as a service / computer services)? If not, is there a variant that could be registered (e.g., "FLYGACA" as one word, a stylised logo mark, or a mark featuring "FLY" more prominently than "GACA")?

(b) Would SAIP require GACA's consent as a condition of registration? If so, how would we approach obtaining that consent?

(c) Is "CAPTAIN ADEL" (the AI sub-brand) freely registrable at SAIP in Class 41 and Class 42? We regard this as an uncontested question but would welcome confirmation.

Question 3: Whether to seek GACA authorisation for the name

(a) Is there a formal mechanism by which a private entity can obtain GACA's written consent to use "GACA" as part of its trade name?

(b) If we sought GACA's consent, what conditions (if any) is GACA likely to impose? Is this a realistic path?

(c) If GACA's consent is not obtainable or not sought, what ongoing obligations or risk management steps does counsel recommend?

Question 4: Recommended path

Please advise which of the three paths in Section 3.3 of this brief (keep, demote, or rebrand) is most legally defensible and which counsel recommends, with supporting reasoning. If counsel recommends a different option entirely, please describe it.

5. Practical Constraints and Context

5.1 Timeline: The naming decision gates entity formation, which gates bank account opening, which gates payment processing. We are targeting launch within 60 days of receiving this brief. We need counsel's opinion within 20 working days if possible.

5.2 Cost of rebrand: A rebrand at this stage (pre-launch, pre-entity) costs primarily time and brand asset redesign — it is painful but manageable. A post-launch rebrand involves: domain changes, entity name change, all registered documents, banking relationships, and user communications. The cost of waiting is high. Counsel should advise on the basis of the facts, not on our preference to keep the name.

5.3 Entity name: We intend to incorporate a KSA legal entity (LLC or sole proprietorship equivalent). The registered entity name will need to be consistent with whatever name counsel recommends. Counsel should advise whether the entity name itself needs to avoid "GACA"

regardless of the trade name outcome.

5.4 The [.sa](#) domain: Registration of [flygaca.sa](#) may require coordination with CITC. Counsel should advise whether a [.sa](#) domain incorporating "gaca" faces any specific regulatory restriction.

5.5 Investor relations: We have prospective investors who will conduct IP due diligence. An unresolved naming risk is a material issue for them. The opinion letter needs to be in a form that can be summarised or shared with investors.

6. What We Need From Counsel

A written legal opinion on firm letterhead, signed by responsible advocate, addressing Questions 1–4 in Section 4, covering:

1. The passing-off / unlawful use risk and counsel's assessment of its severity
2. A clear registrability opinion for "FLY GACA" at SAIP, with any variant recommendations
3. Registrability confirmation for "CAPTAIN ADEL"
4. Counsel's recommendation on which path to take, with risk assessment for each
5. Next steps (e.g., SAIP application, approach to GACA, entity name)

Format: Written opinion on firm letterhead. We will need to share a summary or redacted version with investors.

Timing: Within 20 working days of receipt of instructions and fee agreement.

Fee estimate: Please provide an estimate before commencing work.

7. Documents Available for Counsel's Review

- [brief-defensible-naming.md](#) (02-legal/) — earlier naming analysis
- [lawyer-brief.md](#) (02-legal/) — combined corpus-rights and naming brief (May 2026)
- Live website at [flygaca.com](#) — for review of current use and disclaimer
- Disclaimer text: [flygaca.com/disclaimer](#)
- Proposed entity name options: [to be provided by founder]

Contact: Adel Yahya A. Madkhali | i@flygaca.com | [phone to be provided separately]

Brief prepared 2026-06-14 by Fly GACA with AI drafting assistance. Not legal advice.